

DNB EXPORTS LLC, and
AFI ELEKTROMEKANIK VE ELEKTRONIK SAN. TIC. LTD. STI.

Complainants,

v.

BARSAN GLOBAL LOJISTIKS VE GUMRUK MUSAVIRLIGI A. S.,
BARSAN INTERNATIONAL, INC., and
IMPEXIA INC.

Respondents.

IMPEXIA'S OPPOSITION TO COMPLAINANTS' EXCEPTIONS TO INITIAL DECISION

TABLE OF CONTENTS

INTRODUCTION	1
I. The ALJ Properly Determined the Commission Has No Jurisdiction Over Impexia.....	2
A. Complainants Failed to Prove Impexia is Subject to the Shipping Act.....	2
B. Complainants Blatantly Ignored the <i>Rose</i> Factors.....	4
C. Complainants Failed to Meet Their Burden of Proof	5
D. Section 10(b)(13) Only Applies to Common Carriers, Marine Terminal Operators, and Ocean Freight Forwarders	7
II. Complainants Rely on the Same Lack of Evidence To Support Their Allegations.....	8
A. Complainants' Burden	9
B. The Commission Does Not Have Jurisdiction Over Air Shipments.....	9
C. Complainants' Lack of Evidence for its Section 10(b)(13) Claim	11
D. Complainants Failed to Demonstrate Any Actual Injury	12
E. The ALJ Properly Weighed the Credibility of All the Evidence Presented	14
CONCLUSION.....	14

TABLE OF AUTHORITIES

Cases

<i>Crowley Liner Services, Inc., and Trailer Bridge, Inc. v. Puerto Rico Ports Authority</i> , No. 00-02, 2001 WL 1632555 (FMC Sept. 20, 2001)	4
<i>Kawasaki Kisen Kaisha, Ltd. v. Intercontinental Exchange, Inc.</i> , No. 00-01, 2000 WL 1285694 (FMC Aug. 3, 2000).....	4

Statutes

46 U.S.C. § 41103(a)	8
46 U.S.C. §§ 40101-41309	3
Admiralty & Mar. Law § 10-2 (5th ed.)	3

INTRODUCTION

Complainants DNB Exports, LLC (“DNB”) and AFI Elektromekanik Ve Electronic San. TIC. Ltd. STI’s (“AFI”) (collectively “DNB/AFI” or “Complainants”) Brief in support of their Exceptions (“Complainants’ Brief”) lacks any justifiable basis to revisit the Administrative Law Judge’s (“ALJ”) January 24, 2014 Initial Decision. Akin to the unsupported accusations that Complainants have hurled at Impexia throughout the entirety of these proceedings, Complainants now take aim at the ALJ, asserting that his Initial Decision is “extremely shortsighted, and evidenced a misunderstanding of the issues, and/or an unexplainable bias on the part of the ALJ.” Complainants’ Brief at 1. Throughout their Brief, they complain that the ALJ did not make proper credibility determinations, or mischaracterized facts, or erroneously found that the preponderance of the evidence burden was not met based on Complainants’ circumstantial evidence, or that the ALJ even ignored the “facts” of how Impexia unlawfully used Complainants’ information. All of the arguments in Complainants’ Brief ring hollow.

Complainants’ Exceptions to the Initial Decision are a blatant attempt to take another bite at the apple. See *DNB Exports v. Barsan Global Lojistik*s, FMC No. 11-07 (Complainants’ Brief in Support of Their Exceptions to Initial Decision, Feb. 18, 2014) (hereinafter “Exceptions”). The ALJ issued a detailed and well-reasoned eighty-five (85) page decision that describes and evaluates each piece of evidence (or lack thereof) brought forth by the Complainants in their multiple briefs. Here, the ALJ performed the function of trier of fact and trier of law, and Complainants cannot insert themselves into that role simply because they are displeased with the outcome of the case. In their Brief, Complainants re-hash old arguments and continue to ignore the basic jurisdictional questions outlined in the ALJ’s Initial Decision.

Complainants fail to recognize that it is their burden to prove their case by a preponderance of the evidence. Throughout Complainants' Brief, they question the ALJ's evaluation of the evidence set forth by Respondents. Yet, Complainants do not acknowledge the lack of evidence presented in support of their own claims. There is no basis by which to grant Complainants' Exceptions and the Commission should affirm the ALJ's Initial Decision.

I. The ALJ Properly Determined the Commission Has No Jurisdiction Over Impexia

Time and time again, Complainants have failed to demonstrate that Impexia is subject to Commission jurisdiction for the alleged violation of Section 10(b)(13) of the Shipping Act. First, Complainants conceded that Impexia is not a common carrier, marine terminal operator, or ocean freight forwarder. Moreover, Complainants continue to argue Impexia operated as a "corporate shell" or "alter ego" of the Respondents Barsan Global Logistik VE Gumruk Musa Virilgi A. S. ("BGL") and Barsan International, Inc. ("Barsan Int'l") (collectively, "Barsan"). Yet, given multiple opportunities, Complainants fail to cite one case or address the *Rose* factors that the Commission relies upon to determine this issue. *Rose International Inc., v. Overseas Moving Network*, 29 S.R.R. 119, 167-168 (FMC 2001). Accordingly, Complainants have abandoned this claim and it should not be considered by the Commission.

A. Complainants Failed to Prove Impexia is Subject to the Shipping Act

The ALJ found that Impexia is not a common carrier, marine terminal operator, or ocean freight forwarder. I.D. at 21. As the ALJ properly notes, Complainants never once allege that Impexia operated as a common carrier, marine terminal operator, or ocean freight forwarder. *DNB Exports v. Barsan Global Logistik*, FMC No. 11-07 (ALJ Initial Decision Jan. 24, 2014, at 19) (hereinafter "I.D.").

Pursuant to the Shipping Act (or “the Act”),¹ the Commission has limited regulatory jurisdiction to oversee defined activities of international shipping lines (“ocean common carriers”), marine terminal operators, and ocean transportation intermediaries (“OTIs”) that provide certain regulated services in the United States foreign commerce. *See* 1 Admiralty & Mar. Law § 10-2 (5th ed.) (discussing the history of government regulation of ocean transportation). Moreover, the legislative history of the Shipping Act confirms this intent. The House Report explaining the 1984 Act states that the legislation accomplishes seven major purposes. H.R. REP. No. 98-53(I) (1984). Under the section, “Purpose of the Bill,” the sixth of the seven purposes reads, “the bill provides a list of specific prohibited shipping practices for **carriers, shippers, and marine terminal operators.**” *Id.* (Emphasis added.) This reinforces Congress’ intent to confer jurisdiction over only specific types of entities, namely, in Section 10(b)(13), common carriers, marine terminal operators, and ocean freight forwarders.

The Commission also acknowledges that it is an agency of limited jurisdiction. *See, e.g., Crowley Liner Services, Inc., and Trailer Bridge, Inc. v. Puerto Rico Ports Authority*, No. 00-02, 2001 WL 1632555, at *3 (FMC Sept. 20, 2001) (“It is elementary law that a tribunal should determine its jurisdiction before addressing the merits of a controversy brought before it. This principle is especially relevant when the tribunal has limited jurisdiction such as this Commission.”); *Kawasaki Kisen Kaisha, Ltd. v. Intercontinental Exchange, Inc.*, No. 00-01, 2000 WL 1285694, at *1 (FMC Aug. 3, 2000) (“It is elementary law that a court or agency of limited jurisdiction such as the Federal Maritime Commission should determine its jurisdiction

¹ The Commission’s jurisdiction over specific persons and entities involved in ocean borne commerce is well-established, dating to the enactment of the Shipping Act, 1916, and presently derived from the Shipping Act of 1984, as amended by the Ocean Shipping Reform Act of 1998, the Foreign Shipping Practices Act of 1988, Section 19 of the Merchant Marine Act, 1920, and Public Law No. 89-777. 46 U.S.C. §§ 40101-41309 (“The Shipping Act”).

before proceeding to decide the merits of a controversy and that the court or agency can raise a jurisdictional issue on its own violation at any time if it appears that jurisdiction may be lacking.”).

Impexia is not, nor has it ever been, engaged in the business of providing ocean freight forwarding and/or NVOCC services, nor does it hold itself out to the public as an “ocean common carrier.” Rather, Impexia is merely a procurement firm that hires shipping entities, *e.g.*, ocean freight forwarders/NVOCCs, to transport products overseas. Consequently, Impexia is not a “person” subject to the Shipping Act, and the Commission lacks personal jurisdiction over it.

B. Complainants Blatantly Ignored the Rose Factors

Upon completion of discovery, the ALJ ordered that Complainants explicitly address these factors. *Rose International Inc., v. Overseas Moving Network*, 29 S.R.R. 119, 167-168 (FMC 2001); *see* July 27, 2012 Order on Pending Motions at 4 (“In their supplement, Complainants should address the elements the Commission has stated should be considered on a claim that a corporate veil should be pierced. *See Rose International...*”). However, Complainants ignored this request. In its (1) Trial Brief, (2) Supplemental Brief, (3) Reply Brief to Impexia, (4) Reply Brief to Barsan Respondents, and (5) Exceptions to the Initial Decision Complainants never once address these factors. And this is unsurprising, because Complainants had no basis to suggest that Impexia was a corporate shell or alter ego of BGL and/or Barsan to begin with.

As the ALJ notes in his Initial Decision:

DNB/AFI have had a full and fair opportunity to conduct discovery and present evidence and argument to support their claim that Impexia is a corporate shell and alter ego of BGL and/or Barsan Int’l. DNB/AFI do not set forth any argument and do not cite any cases on this claim, and the words and phrases “corporate shell,” “sham,” “pierce,” “veil,” and “alter ego” do not appear in DNB/AFI’s opening brief on the merits filed on April 20, 2013. DNB/AFI do not address the

factors that the Commission identified in *Rose Int'l*. DNB/AFI do not propose any findings of fact on the *Rose Int'l* factors. I.D. at 22.

Since Complainants failed to advance the proper argument, the ALJ properly considered this claim abandoned. I.D. at 24.

C. Complainants Failed to Meet Their Burden of Proof

While considering the claim against Impexia abandoned, the ALJ continued to conduct a thorough analysis of the Complainants' evidence. It is Complainants who must prove by a preponderance of the evidence that Impexia was an "alter ego" or "corporate shell" of the Barsan Respondents. However, Complainants failed to present any evidence beyond mere speculation. The ALJ considered Complainants' evidence, or lack thereof, and determined that Impexia is not a corporate shell of Barsan, and is its own distinct entity.

The Commission has clearly held that the following factors should be examined to determine whether a corporation is a shell of another and the veil should be pierced:

- (1) the nature of the ownership and control;
- (2) failure to maintain corporate minutes or adequate corporate records and failure to follow corporate formalities;
- (3) commingling of funds and other assets;
- (4) inadequate capitalization;
- (5) diversion of the corporation's funds or assets to non-corporate uses;
- (6) use of the same office or business location by the corporation and its shareholders;
- (7) overlapping ownership, officers, directors and personnel;
- (8) the amount of business discretion displayed by the allegedly dominated corporation; and,
- (9) whether the corporations are treated as independent profit centers.

Rose International Inc., v. Overseas Moving Network, 29 S.R.R. 119, 167-168 (FMC 2001).

While we need not conduct an exhaustive review of each factor, the weight of the evidence clearly supports a finding against piecing the corporate veil. First, there was no evidence presented supporting a finding that Burcin Karadagli (“Burcin”) was ever an officer or director of the Barsan Respondents; rather, Burcin served a minor administrative role as the accounting manager for Barsan from 2005 to 2011. While Complainants dispute this claim, they again have failed to meet their burden of proof. Based on this lack of evidence, the ALJ properly held that Complainants failed to prove any overlapping officers between Impexia and the Barsan Respondents.

Further, Complainants have not set forth any evidence demonstrating shared ownership between Impexia and Barsan. Impexia is a separate and distinct entity, and Barsan exerted no control over the company. Cuneyt Karadagli, Impexia’s Founder and President, has never been an employee of Barsan. Barsan has never had a proprietary interest in any of Cuneyt Karadagli’s companies, and Impexia has no corporate affiliation with Barsan.

Complainants never presented any evidence in support of many of the other *Rose* factors. For example, Complainants fail to mention any of the following: (1) failure to maintain corporate minutes or failure to follow corporate formalities; (2) comingling of assets; (3) inadequate capitalization; (4) diversion of corporate funds or assets; (5) domination of business operations; or (6) failure to be treated as independent profit centers. Through this patent failure to present such evidence, Complainants fail to meet their burden of proof in favor of piercing the corporate veil.

Despite numerous opportunities, Complainants failed to adequately address the *Rose* factors. Instead of identifying relevant *Rose* factors, Complainants rely on a suspect and circumstantial “close relationship” between Cuneyt Karadagli and Barsan. These personal

interactions are routine among business partners and are irrelevant to the instant matter. All of the circumstantial evidence Complainants cite does not relate to any of the *Rose* factors, nor are they probative in this case. Because Complainants have not provided substantial evidence, with sufficient probative value, demonstrating Impexia is a corporate shell, the Commission should uphold the ALJ's findings.

D. Section 10(b)(13) Only Applies to Common Carriers, Marine Terminal Operators, and Ocean Freight Forwarders

The ALJ rightly concluded that Section 10(b)(13) is written to govern the activities of entities regulated by the Commission, specifically, common carriers, marine terminal operators, and ocean freight forwarders. I.D. at 41. Section 10(b)(13) of the Act reads:

A common carrier, marine terminal operator, or ocean freight forwarder, either alone or in conjunction with any other person, directly or indirectly, may not knowingly disclose, offer, solicit, or receive any information concerning the nature, kind, quantity, destination, consignee, or routing of any property tendered or delivered to a common carrier, without the consent of the shipper or consignee, if the information – (1) may be used to the detriment or prejudice of the shipper, the consignee, or any common carrier; or (2) may improperly disclose its business transaction to a competitor. 46 U.S.C. § 41103(a).

The construction of Section 10(b)(13) plainly evidences that the Shipping Act's prohibitions on disclosures of information apply strictly to common carriers, marine terminal operators, and ocean freight forwarders. The statute is not written to imply that the "any other person" is also subject to the prohibition against disclosure of information. Rather, if Congress intended that the Commission regulate the activities of the "any other person[s]" named only in the referential or subordinate clause, it would have written the statute accordingly. Since Complainants concede that Impexia is not a regulated entity, Section 10(b)(13) is inapplicable.

Complainants mistakenly rely on *Mitsui v. Global Link* in support of its claim. FMC No. 09-01 (ALJ June 22, 2010). That case involved Section 10(a)(1) of the Shipping Act, a provision with an entirely different focus and goal. Section 10(a)(1) provides “A person may not knowingly and willfully, directly or indirectly...obtain or attempt to obtain ocean transportation for property at less than the rates or charges that would otherwise apply.” 46 U.S.C. § 41102(a). Section 10(a)(1) is meant to apply to those who attempt to obtain ocean transportation of property. I.D. at 42. It logically follows that the statute would be written to apply to *any person*, as any person can act as a proprietary shipper. However, Section 10(b)(13) has an entirely different focus. It was written to regulate common carriers, marine terminal operators, and ocean freight forwarders, by preventing them from disclosing valuable information to the detriment of a shipper. Because the statutes have entirely different purposes, any comparison between the two would be inappropriate.

The ALJ appropriately read Section 10(b)(13) and reached a reasonable interpretation of the statute. Accordingly, the Initial Decision should be affirmed.

II. Complainants Rely on the Same Lack of Evidence To Support Their Allegations

In their Exceptions, Complainants present the same fabrications that they presented in their Trial Brief and characterize them as “reasonable” inferences and presumptions. Complainants’ twisted fictions, however, are anything but reasonable, and their reliance on irrelevant, speculative, and unsupported “facts” can in no way be accepted as credible evidence. The ALJ did not find that Complainants had presented sufficient “evidence” to meet their burden, and Complainants have presented no basis in their Exceptions upon which the ALJ’s reasoned findings should be overturned.

A. Complainants' Burden

A complainant alleging violations of the Shipping Act “has the initial burden of proof to establish these violations. The applicable standard of proof is one of **substantial evidence**, an amount of information that would persuade a reasonable person that the necessary premise is more likely to be true than to be not true.” *AHL Shipping Co. v. Kinder Morgan Liquids Terminals, LLC*, 2005 WL 1596715, at *3 (F.M.C.) (emphasis added.); *Tienshan, Inc. v. Tianjin Hua Feng Transp. Agency Co., Ltd*, 2011 WL 7144007, at *6 (F.M.C.). In attempting to prove a case by a preponderance of the evidence, the party with the burden of persuasion may “draw inferences from certain facts when direct evidence is not available, [but] such findings may **not** be drawn from **mere speculation**.” *Bimsha Int’l v. Chief Cargo Servs., Inc.*, 2011 WL 7144011, at *7 (F.M.C.) (citing *Waterman Steamship Corp. v. General Foundries, Inc.*, 26 S.R.R. 1173, 1180 (ALJ 1993), adopted in relevant part, 26 S.R.R. 1424 (1994)) (emphasis added).

To prevail on Complainants’ Section 10(b)(13) against Impexia, Complainants must prove not only that Barsan knowingly disclosed Complainants’ proprietary information to Impexia, but that Barsan and Impexia worked together in facilitating the wrongful disclosure and receipt of Complainants’ proprietary information. Upon review of the record evidence and the briefs submitted by the parties, the ALJ held that Complainants failed to meet their evidentiary burden, and Complainants have presented nothing in their Exceptions that would remotely support that the ALJ’s Initial Decision should be revisited and overturned.

B. The Commission Does Not Have Jurisdiction Over Air Shipments

The only emails involving even potential disclosures of information are related to air shipments. As the ALJ reiterates, it falls on Complainants to demonstrate there is a Shipping Act

provision prohibiting an air common carrier from disclosing certain information.² I.D. at 66. Complainants have failed to do so. The plain language of Section 10(b)(13) and corresponding Commission rules provide that the provision applies only to common carriers who **provide transportation by water**. Quite simply, the Commission lacks jurisdiction over these air disclosures and Complainants have failed to demonstrate otherwise.

The FMC is charged with overseeing the “oceanborne foreign commerce of the United States under the provisions of the Shipping Act of 1984...” 46 C.F.R. § 501.2 (emphasis added). Further, Section 10(b)(13) requires that the disclosed information must concern cargo “tendered or delivered to a common carrier.” Accordingly, Complainants had the burden to show that disclosure of proprietary information was made while Barsan was acting in its capacity as a “common carrier” under the Shipping Act and that the disclosures were made in regard to property tendered or delivered to such a common carrier.

The Commission defines a “*common carrier*” as “any person holding itself out to the general public to provide **transportation by water** of passengers or cargo between the United States and a foreign country for compensation...” 46 C.F.R. § 515.2(f) (Emphasis added).

Complainants’ attempts to blend air and ocean shipments are misguided. The plain language of Section 10(b)(13) states the disclosure of proprietary information must have occurred while Barsan was acting as a common carrier involved in the transportation of goods by water or as an ocean freight forwarder. Barsan was acting in neither of those capacities in connection with air shipments. Further the Act requires that the disclosure occur in regard to property tendered or delivered to a common carrier who transports goods by water. Air shipments would not be tendered to common carriers as defined by the Shipping Act. Thus, any

² Even if Complainants could cite to such a provision, it would arguably be outside of the Commission’s jurisdiction.

air shipments do not fall within the scope of the Shipping Act or within the Commission's jurisdiction.

Further, Complainants' request that the Commission opine on jurisdiction over shipments involving *both* air and water shipments is unnecessary and irrelevant. Exceptions at 18. For purposes of the Initial Decision, the ALJ assumed "that information about the nature, kind, quantity, destination, consignee, or routing of property that Barsan Int'l acquired while handling DNB/AFI's shipments by air is sufficiently related to DNB/AFI's shipments by water to be protected by section 10(b)(13)." I.D. at 66. Accordingly, Complainants' arguments concerning the ocean/air jurisdiction are moot.

The ALJ went on to hold that even assuming the Commission has jurisdiction over these shipments, Complainants failed to meet their burden of proving the other necessary elements for an actionable Section 10(b)(13) claim. Specifically, Complainants failed to prove Barsan Int'l—not merely Burcin—knowingly disclosed protected information, and that there was an "actual injury" resulting from the alleged violation. Therefore, there is no need to address the ocean/air distinction, as the ALJ properly concluded that even if the Commission has jurisdiction over the disclosures involving air shipments, DNB/AFI still failed to prove a violation of Section 10(b)(13).

C. Complainants' Lack of Evidence for its Section 10(b)(13) Claim

Complainants' entire case relies on ten emails forwarded by Burcin to Impexia's President, containing attachments of routine air and ocean shipping instructions which purportedly disclosed "sensitive commercial information" that were essential to Impexia's success. However, the ALJ conducted a detailed examination of this evidence and determined it was insufficient to support Complainants' claims.

A review of these documents readily indicates that they possess little probative value. First, no Barsan Int'l employees were copied on the email communications. Moreover, many of the emails involve different customers that Complainants do not allege ever became customers of Impexia. Further, these emails do not explain how Impexia might use this information to its benefit. To the extent that these emails involve the disclosure of ocean-based shipments, as the ALJ notes, such documents rarely contained customer and project information. I.D. at 65.

D. Complainants Failed to Demonstrate Any Actual Injury

Despite finding that Barsan did not knowingly disclose information to Impexia, the ALJ, in the interest of completeness, discussed whether Complainants proved any actual injury, assuming Barsan did indeed have constructive knowledge of the disclosure. Even if an improper disclosure had been made, if that disclosure did not *cause* Complainants' injury, then Complainants' claims fail.

Based on the emails submitted, the only customer identified as allegedly "taken" by Impexia was 77 Construction Company ("77 Construction"). However, Impexia has demonstrated that Cuneyt Karadagli's relationship with 77 Construction came about because Cuneyt Karadagli is longtime friends with 77 Construction's Business Development Manager, Omercan Kayhan. In fact, Cuneyt Karadagli has known Omercan Kayhan for well over a decade. O. Kayhan Affidavit at ¶¶ 3-6, May 28, 2013 (Impexia App. 15); C. Karadagli Affidavit at ¶ 40, May 31, 2013 (Impexia App. 6). Omercan Kayhan confirmed this pre-existing relationship and stated that in 2010, he reached out to Cuneyt Karadagli to request quotes for a variety of products for 77 Construction; Cuneyt Karadagli then provided reasonable price quotes for those goods, and from there a business relationship was formed. O. Kayhan Affidavit at ¶¶ 5-7, May 28, 2013 (Impexia App. 15-16); C. Karadagli Affidavit at ¶ 42, May 31, 2013 (Impexia App. 6). The ALJ weighed the evidence submitted by Impexia and determined Complainants

had failed to meet their burden of proving Impexia “took” 77 Construction from them. I.D. at 67.

Complainants rely on suspect circumstantial evidence and unfounded conclusions to attempt to prove their case. For instance, Complainants claim that “Impexia’s business model is impossible without the use of complainants’ protected information.” Exceptions at 46. However, as explained and presented in Impexia’s trial brief and supporting affidavit, Impexia’s business model does not rely on specialized technical expertise. Impexia demonstrated that its business model involves procuring goods that have already been identified by its customers and are submitted to Impexia with a customer order or request. C. Karadagli Affidavit at ¶ 80, May 31, 2013 (Impexia App. 12). Accordingly, there is no arduous vetting and approvals process that Complainants describe is a necessary component of their business. Complainants’ argument that “Impexia did not create a unique business model” is irrelevant. Exceptions at 46. Complainants are simply attempting to blame and penalize Impexia for a contractor’s decision to purchase products from another. This does not constitute an FMC violation or anything remotely close to one. As the ALJ rightly concluded, Complainants “do not ‘own’ their customers.” I.D. at 69. Had Complainants wanted to protect themselves and their investment, they could have entered into exclusive contracts with the contractors, *e.g.*, in exchange for undergoing the vetting process and securing approvals for the products, however, they did not. Complainants cannot blame Impexia for losses that are merely a result of free market economics.

Impexia provided numerous sworn affidavits identifying how it found and secured its customers. Unlike Complainants’ naked assertions, Impexia’s account of facts is heavily supported by numerous third party affidavits and documentary support. All Complainants have been able to show is that it shares certain customers with Impexia. Nothing Complainants have

presented in support of their allegations in this action is reasonable, and Complainants have no justifiable basis to attack the credibility of these affidavits. Accordingly, the ALJ weighed all of the evidence presented, and found it supported a “finding that Impexia’s relationship with the customers DNB/AFI allege were ‘taken’ by Impexia developed from a long-term relationship between Cuneyt Karadagli and a representative of the customer (77 Construction), information from another Impexia customer (Ayken, Yenigun, Cakmaklar Pano), or Impexia’s marketing emails (Metag, Epik, Delta Om).” This finding is based on the record evidence and should be affirmed.

E. The ALJ Weighed the Credibility of All the Evidence Presented

Complainants heavily rely on a last ditch effort by attacking the credibility of Cuneyt Karadagli and Ugur Asku. Exceptions at 3. While Complainants repeatedly argue their affidavits should be discounted, Complainants never actually attempted to present any evidence of their own. Complainants rely only on blanket and unsupported accusations to attempt to discredit these witnesses indirectly. In their Exceptions, Complainants blatantly ignore their burden of proof. They have presented no evidence of their own in support of their claim that Impexia “stole” Complainants’ customers and business as a result of an improper disclosure of Complainants’ proprietary information from Barsan to Impexia.

CONCLUSION

After a full and fair opportunity to present its case, Complainants have no basis to file Exceptions and attempt to overturn the ALJ’s Initial Decision simply because they disagree with the outcome of the case. Complainants were put to the test and given a full and fair opportunity to make their case, but ultimately, Complainants could not meet their burden of proof.

Complainants' claims are unfounded here where the Commission does not have jurisdiction over Impexia because it is not engaged in providing regulated services under the Shipping Act, it is not an alter ego of Barsan, Impexia did not commit a violation of the Shipping Act, nor did any alleged violation committed by Impexia or Barsan cause Complainants' any injury. The ALJ thoroughly examined the evidence presented, and reached a well-reasoned decision based on the evidence before him. Accordingly, the ALJ's Initial Decision should be affirmed.

Dated: March 26, 2014

Respectfully submitted,

/s/ Ashley Craig

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document upon the following individuals by e-mail and will send the document by first-class mail on March 26, 2014:

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Dated in Washington, D.C. this 26th day of March, 2014.